

**PERFORMANCE WORK STATEMENT
US ARMY CORPS OF ENGINEERS MIDDLE EAST DISTRICT
VEHICLE LEASE – QATAR
18 April 2025**

Part 1 - General Information

1. General: This is a commercial supply procurement to meet a recurring supply effort for ground transportation (vehicles). The vendor shall provide safe and operable vehicles at all times for U. S. Army Corps of Engineers (USACE), Transatlantic Division, Middle East District personnel who are assigned to the Qatar Area Office. The U.S. Government (USG) will not exercise any supervision or control over the vehicle providers.

1.1 Background: The intent of this acquisition is to award a Firm-Fixed-Price (FFP) contract to provide safe and operational vehicles for USACE employees (military and civilian) stationed Outside the Continental United States (OCONUS) at locations within the U.S. Central Command (CENTCOM) Qatar Area of Responsibility (AOR). The vehicles shall comply with features and standards listed in Part 5.

1.2 Objectives: USACE – Middle East District requires the Contractor to supply vehicles that are safe and fully operational which includes but is not limited to licensing; inspections; insurance; and as required, toll stickers; and any effort that is required to provide safe and operational vehicles.

1.3 Scope: This contract provides twelve (12) vehicles for USACE personnel located within the CENTCOM AOR QATAR. The contract requirements shall stipulate the specific vehicle minimum specifications required and/or geographical location in Qatar, all shall be in accordance with the PWS.

1.4 Period of Performance Duration: The intended contract duration for this requirement shall be from 25 June 2025 through 24 June 2026.

1.5. Quality/Insurance: The Contractor shall certify in writing in response to this request that the vehicles meet the requirements of the PWS; local laws; and are covered by a comprehensive insurance plan. Please review paragraph 4.3 this document. Copies of the current vehicle registration and insurance shall be placed in the glove compartment of the respective vehicles provided. The Contractor shall carry insurance to cover vehicles stolen or damaged through accidents; criminal acts, in the minimum amounts required by Qatar's country law. The insurance shall also cover the costs/damages of third parties involved in an accident, property damaged as a result of an accident, whether caused by the USG, a USG employee/military member, or external force. The level of insurance shall be 100 percent (%) with no deductible to be paid by the Government.

1.5.1 Contractor Identification: Contractor personnel shall wear a Contractor-provided identification card at all times when interacting with USG personnel. Vehicles will not be accepted from Contractor personnel without proper identification.

1.5.2 Time and Place of Delivery: The contractor shall coordinate delivery with Contracting Officer's Representative for the delivery of vehicles described in this PWS. The country covered under this contract is Qatar.

1.5.3 Safety: The Contractor shall provide safe and operational vehicles and vehicles shall be in accordance with this PWS.

A safe vehicle is defined as a vehicle that has:

- Completed all repairs required as a result of a collision; regardless of who is at fault or what collided with the vehicle;
- Replaced if damaged, non-operating, or malfunctioning;
- Periodic manufacturer recommended inspections and repairs;
- Maintenance that is not scheduled but, is required to correct deficiencies and to restore the vehicle or equipment to a serviceable condition; and
- All recall work completed when notified of a recall.

1.5.4 Accident Notification: The Contractor will notify the identified Contracting Officer's Representative (COR) as soon as practical, but not later than eight hours, after notification of an accident which meets the definition of Recordable Injuries or Illnesses or High Visibility Accidents, property damage equal to or greater than \$2,000. Immediate notifications to the Contracting Officer (KO) and District/Division Safety Offices shall be made for all accidents noted in EM 385-1-1 paragraph 01-D-02, https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf. The Contractor shall ensure that recordable accident and property damage reports are complete and accurate.

1.6 Type of Contract: Firm Fixed Price.

1.7 Post-award Conference/Periodic Meetings: The Contractor agrees to attend any post award conference and/or meeting convened, via telephone, by the KO in accordance with Federal Acquisition Regulation (FAR) Subpart 42.5 Post-award Orientation. The Contractor shall provide the minutes of the meeting to the COR within three business days of each meeting.

1.8 Contracting Officer Representative: The COR monitors technical requirements of the contract (see paragraph 5.2.10 of this document) and assists the KO with contract administration. The COR is authorized to perform the following functions: assure that the Contractor provides vehicles that meet the requirements of this PWS. There may be additional duties assigned to the COR which will be detailed in a letter of designation issued to the COR. A copy of which is sent to the Contractor, which may state the responsibilities and limitations of the COR, especially with regard to changes in price, estimates or changes in delivery dates, and locations for pick-up and swap-out of vehicles. The COR is not authorized to change any of the terms and conditions of the resulting order.

PART 2 - DEFINITIONS & ACRONYMS

2.1 DEFINITIONS:

2.1.2 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the USG. The term used in this contract refers to the prime contractor.

2.1.3 Contracting Officer (KO): A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the USG. Note: The Contracting Officer is the only individual who can legally bind the USG.

2.1.4 Contracting Officer's Representative (COR): An employee of the USG appointed by the KO to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract. A COR will be appointed for this contract.

2.1.5 Subcontractor: One that enters into a contract with a prime contractor. The USG does not have privity of contract with the subcontractor.

2.1.6 Workday: The Contractor shall be available during normal working hours which is 0800 to 1630 hours daily. Additionally, an emergency POC shall be provided and available 24/7.

2.1.7 Work Week: Sunday through Thursday, 0800 – 1630 hours, but may vary.

2.2. ACRONYMS:

AOR	Area Of Responsibility
CENTCOM	United States Central Command
COR	Contracting Officer Representative
KO	Contracting Officer
OCNUS	Outside the Contiguous United States
POC	Point of Contact
PWS	Performance Work Statement
TAM	U.S. Army Corps of Engineers Middle East District
USACE	U.S. Army Corps of Engineers
USG	U.S. Government

PART 3 – US GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. US Government Furnished Items and Services: Not Applicable

PART 4 –FURNISHED ITEMS AND SERVICES

4. Technical Requirements: The Contractor shall provide all labor, material, equipment, and supplies to successfully provide vehicles, as described in this PWS, upon receipt of a duly executed contract. The Contractor shall act as the single point-of-contact (POC).

4.1 Contractor Points-of-Contact (POC): The Contractor shall provide the KO, within seven (7) days after award, a Contractor employee contact list with names, email addresses, and telephone numbers that shall be available during normal duty hours as stated in the contract. Normal duty hours shall be 0800 to 1630 hours, Sunday through Thursday. The Contractor shall also provide the KO with emergency POC information for after normal duty hour emergencies. The listing shall be updated as changes occur and sent to the KO via email no later than the close of the business day when the update was made.

4.2 General Employee Qualifications: The Contractor shall employ persons with the ability to fluently speak, read, write, and understand English to interact with USG personnel.

4.3 Conformance Statement: The Contractor shall provide a signed Letter of Conformance per this contract. The letter shall affirm that vehicles provided are in conformance with all applicable local laws, permits, registration, license, insurance, and all contract terms and conditions.

PART 5 - SPECIFIC TASKS

5.1 Ground Transportation (Vehicles): The Contractor shall supply a fleet of safe and operational vehicles, as required, and incidental services to provide operational vehicles. Items required to keep a vehicle operational is defined as stickers, if required; registration; comprehensive insurance to the full requirements of local law; licensing; inspections; and whatever effort is required to provide safe and operation vehicles. The Contractor shall demonstrate consistent rapid response (if required) and flexibility to provide the means of transport by the date(s) required in the awarded contract.

5.1.1 The Contractor-provided vehicles shall be invoiced on a monthly basis as indicated in the contract CLINS.

5.1.2 The Contractor shall provide vehicles free of limitations or surcharges on mileage or usage.

5.2 Vehicle Specifications: The Contractor-provided fleet of vehicles shall be in new or in like new condition (/ less than 20,000 kilometers) Model year 2025 or newer at the time of acceptance this vehicle model requirement applies only to the first year of the contract. The vehicle model requirement for option years will be specify at the time each option is exercised. Vehicles shall have all windows tinted in accordance with local laws. The Contracting Officers Representative (COR) will check Contractor-provided vehicles for acceptability before they are accepted. The Contractor shall ensure the vehicle is available for its intended use in a safe and operational condition.

5.2.1 The Contractor shall provide a replacement vehicle that is similar to the vehicle being exchanged, during periods of service, maintenance, and/or repair.

5.2.2 The Contractor-provided vehicles shall be of the following category:

5.2.3 Mid-Size Sport Utility Vehicle (SUV): A mid-sized sports utility vehicle (SUV) with 4-wheel drive and seating capacity for five people inclusive of jump seats. The minimum acceptable engine displacement is 3.0 liters, each vehicle must at minimum have a minimum 18 US gallon fuel tank.

5.2.4 The Contractor-provided SUVs shall have the following salient characteristics:

- Minimum six-cylinder engine
- Off-road steel belted radial tires
- Fully automatic transmission
- Heavy duty factory installed heating/cooling system
- Driver and passenger side view mirrors
- Seat belts
- Front driver and passenger air bags minimum
- Fire extinguisher
- Safety glass on all windows (Safety glass refers to the standard laminated glass safety features)
- Red Cross approved first aid kit
- Warning triangle
- Jumper cables
- Inflated standard spare tire
- 4-wheel anti-lock brakes
- Cruise control
- Backup Camera

5.2.5 Traffic fines and other traffic violations are the responsibility of the government driver. The Contractor shall inform the COR of any violations involving its vehicles within 2 months of a fine being issued. The USG will attempt to coordinate settlement of any traffic fine notifications with government personnel; however, the government will have no liability for the fines.

5.2.6 The Contractor shall coordinate with the COR regarding delivery of all supplied vehicles. The Contractor shall deliver the vehicle early enough to be processed for acceptance and available on the date, time and location specified by the COR. The Contractor shall coordinate date, time and location of vehicle returns with the COR. The Contractor shall deliver vehicles that are clean both exterior and interior and free of rust, soil, dirt, and damage.

5.2.7 The Contractor shall replace all vehicles within the supply fleet that reach 80,000 kilometers (or less at Contractor's discretion) with a similar vehicle at the contracted amount. Vehicles, including all engine parts, interior parts, and exterior parts, shall be in good working condition when delivered and during use by the US government personnel. The Contractor is responsible for replacing broken windshields and flat tires regardless of fault at no additional cost to the Government. Tires shall be new and/or at least 90% of tread life remaining and tire

replacement shall be in accordance with the manufacturer's recommended mileage and per operating conditions in Qatar.

5.2.8 The Contractor and the COR shall perform a joint inspection prior to accepting a vehicle from the Contractor and prior to the Contractor accepting the vehicle from the Government. Any damage shall be documented by photographs and in writing and shall include the date of the inspection and signatures of the individuals performing the inspection. The report shall be submitted to the COR and KO within 10 calendar days after the inspection. The COR shall maintain records of contractor-provided vehicles to the Government to include the vehicle identification number. Vehicles that are replaced and/or loaned to the U.S. Government for any reason will be recorded on the vehicle report. The COR shall provide the Contractor a copy of the vehicle report on a monthly basis.

5.2.9 The Contractor shall provide vehicle breakdown/recovery service 24 hours a day 7 days a week throughout Qatar, when vehicle is determined to be in an inoperable status, as part of the monthly price per vehicle.

5.2.10 The Contractor shall coordinate directly with the COR to resolve complaints and disputes that occur with contractor-provided vehicles. If a complaint cannot be resolved to the satisfaction of both parties, the KO shall be notified within 15 calendar days for resolution.

END OF PERFORMANCE WORK STATEMENT

MAIL INVOICE: (PLEASE REFERENCE COMPLETE CONTRACT NUMBER ON THE PACKING SLIP AND THE INVOICE)

U.S. ARMY CORPS OF ENGINEERS
MIDDLE EAST DISTRICT
ATTN: TBD at the time of award
P.O. BOX 2250
WINCHESTER, VA 22604-1450

In accordance with FAR 52.212-4, Contract Terms and Conditions- Commercial Items (June 2010),

Invoice. (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized), to the address designated in the contract to receive invoices. An invoice must include--

- (i) Name and address of the Contractor;
- (ii) Invoice date and number;
- (iii) Contract number, contract line item number and, if applicable, the order number;
- (iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;
- (v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;
- (vi) Terms of any discount for prompt payment offered;
- (vii) Name and address of official to whom payment is to be sent;
- (viii) Name, title, and phone number of person to notify in event of defective invoice; and
- (ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

INVOICES SHALL BE SENT VIA EMAIL TO USACE TAM KPMO POINTS OF CONTACT LISTED BELOW:

The Contractor shall submit invoices, Government Bill of Lading, DD250 Material Inspection and Receiving Report, and Certificate of Conformance to the Contracting Officer, Contract Specialist and Contracting Officer's Representative at:

Contracting Officer: TBD at the time of award

Contract Specialist: TBD at the time of award

Contracting Officer's Representative: TBD at the time of award

FINAL INVOICES REQUIRE A SIGNED RELEASE OF CLAIMS IN ADDITION TO THE ABOVE REQUIRED INVOICING DOCUMENTS.